

****The Defense of Health Data is Not Just for Anti-Vaxxers: It is Written in EU Treaties****

****Interview with Ginevra Cerrina Feroni, Vice President of the Data Protection Authority****

(by Maddalena Loy, La Verità, June 30, 2024)

Today marks the deadline by which Italian citizens can oppose the uploading of their data and clinical documents prior to May 19, 2020, into the Electronic Health Record (EHR). The issue was initially ignored but later sparked various controversies. Professor Ginevra Cerrina Feroni, a constitutional law professor and vice president of the Privacy Authority, discusses it with La Verità.

The Privacy Authority, once again going against the tide, has positioned itself in defense of citizens' data protection concerning the Electronic Health Record.

"Protecting personal data means protecting the individual. Without the prerequisite of protecting personal identity, which today is a 'datafied' identity, no other freedom can be authentically conceived. This task, in Europe, has been entrusted to so-called independent authorities. Independence is from governments of any political color and from market pressures. A decidedly uncomfortable task: the period of the pandemic emergency was a clear representation of this. Since its establishment, the Privacy Authority has represented a crucial safeguard for citizens. A non-trivial challenge-mission, most often in solitude."

****Regarding the EHR, does the Authority have the power, as a last resort, to block the processing of personal data?****

"The powers of the Authority are to ensure that the processing of personal data complies with European and national regulations. In the case of violations, the Authority can issue warnings and order compliance with legal provisions, up to imposing temporary or permanent restrictions on processing. The matter of the EHR—regarding which the Authority has indeed initiated proceedings against 16 Regions and 2 Autonomous Provinces—is very serious."

****What is being contested against the Regions?****

"The significant disparity at the national level regarding the rights of data subjects, such as the right to erasure of data and documents present in the EHR, the right to consult accesses made to one's profile, the right to express specific consents for the different purposes achievable with the record (for example, care, prevention, prophylaxis), and the failure to adopt measures aimed at ensuring the security and integrity of processing. I hope that we do not have to resort to extreme measures like blocking, but that the Regions will quickly comply with the provisions of the ministerial decree of September 7, 2023. I remind you that the correct implementation of the EHR is the prerequisite for the entire architecture being built, from the Health Data Ecosystem (Eds) to the European Health Data Space (Ehds), up to the new system of interconnections and, of course, to Artificial Intelligence."

****The involved Regions and Autonomous Provinces are 18: which ones are missing from the list?****

"Preliminary investigations are still ongoing for three Regions (Aosta Valley, Abruzzo, and Sicily), while they have already been concluded for the other Regions/Provinces."

****What do you say in response to the objections raised by the President of the Conference of Regions, Massimiliano Fedriga, who claims that those who slow down the EHR 'put citizens' health at risk'?**

"I do not know what President Fedriga is referring to. Data protection should not be seen as an obstacle to the digitization of health data but as a useful element to build citizens' trust in this new reality. This is not just a concern for a few, but for everyone. The EHR is a tool through which citizens should be able to track their health history, sharing it—with their consent and securely—with healthcare providers. But all this should not undermine the right to informational self-determination, which is a tool for governing the information that concerns us—among which the most precious are health-related—based on claims of transparency and fairness. As an Authority, we deemed it necessary for citizens to freely choose whether to include their health data prior to 2020 in the EHR."

****A right to be exercised by today... ****

"It's a pity that the information campaign has not achieved the promised results in terms of effectiveness. In general, I like to think of an informed, mature, and aware citizenship. Not infantilized subjects, but responsible citizens regarding their rights and duties."

****Can you provide a concrete example of how the lack of protection and violations of privacy regarding health data could concretely affect a citizen's daily life?****

"Access to health data by unauthorized third parties can have devastating effects on people's lives; I think of employment relationships or the signing of a mortgage. The issue is crucial; it is no coincidence that there has been a need to introduce oncological oblivion in our country."

****This has been discussed very little... ****

"The Regions and Provinces should implement information campaigns directed not only at citizens but also at general practitioners, pharmacists, and every other interested healthcare operator, so that the EHR is valued and used in full transparency."

****The profiling of a citizen based on the evidence of their data, and not on the evidence... ****
clinic, could it lead to an "algorithmic" capping of healthcare services in its regard?

"The risks of algorithmic discrimination are so evident that the new regulation on Artificial Intelligence places health treatments among those considered high risk. Currently, the use of AI systems to process the data contained in the electronic health record (FSE) is not foreseen. As highlighted by the Authority in the Decalogue for the implementation of national health services through Artificial Intelligence systems, the profiling of an individual through health data for purposes of relevant public interest must be expressly provided for by the laws of the Member States, in compliance with adequate measures to protect the rights, freedoms, and legitimate interests of the individuals concerned. In the absence of a specific rule, therefore, it is not possible to use the data in the FSE with the logic of AI." Is there a risk that the digitization of health data could lead to a disempowerment of doctors towards patients, for example, by delegating the administration of medications and therapies to an algorithm? "Today, there is no obligation for the doctor to input and consult the file, nor a specific responsibility in case of the patient's lack of access to the FSE. The Authority has emphasized the need to accompany the introduction of AI systems with a review of ethical and deontological aspects, as well as those related to professional responsibility."

Is the establishment of an electronic Habeas Corpus feasible or is it wishful thinking?

"Habeas corpus is the removal of the body from the arbitrariness of another's authority. The continuous production of European norms aimed at the digitization of our lives requires systematization and coordination. On some occasions, I have spoken about the almost necessary creation of a 'Corpus iuris digitalis'."

And rightly so. Yet some still argue that these are the battles of the so-called "no vax."

"The term 'no vax' is in itself unacceptable insofar as it has taken on defamatory connotations regarding free, legitimate, and very delicate choices of individuals concerning their own bodies. It tends - as happened during the pandemic - to categorize individuals who do not conform, to isolate them, to condemn them, to psychiatricize them, denying the pluralism of ideas, values, and ethical choices, which is the foundational axis of any democratic and constitutional system. Here we are not talking about vaccines, but about exercising a right, which is the protection of one's personal data, specifically health-related data, even guaranteed by the European Treaties."

What is changing in the global legal landscape? Are we moving towards a "massification" of rights and health protocols, to the detriment of the individual?

"The right to the protection of personal data is a fundamental individual right under the Charter of Fundamental Rights of the European Union (art. 8). It is very common for the Authority to adopt measures against data controllers that involve even a single person, especially in the healthcare and workplace contexts."

Is there greater awareness among citizens regarding this type of campaign, such as the one you are conducting on the electronic health record?

"Yes, we have recorded an increasing involvement of citizens, who are reaching out to the Authority with reports, complaints, or questions that arrive daily at our offices. Citizens are becoming aware of their digital identity and are increasingly asserting their right to informational self-determination, which is at the heart of privacy regulation. However, the path towards a vision of privacy as a design element, according to the well-known principles of privacy by design and by default, is still long."